

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AOTEAROA NEW ZEALAND

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Aotearoa New Zealand. The country's most famous environmental victory did not turn on a permit — it turned on a lake, a petition, and a movement that would not be ignored. In the late 1960s, the Government planned to raise **Lake Manapōuri** in Fiordland by as much as thirty metres to feed a hydro scheme for an aluminium smelter, drowning the lake's wooded islands and beech-forest shores and merging it with Lake Te Anau. Against it rose the **Save Manapōuri campaign** — led by Forest & Bird, local farmers, and scientists — and in 1970 it delivered a petition signed by **264,907 New Zealanders, nearly one in ten of the entire population**, the largest in the country's history to that point and a scale of public feeling no government could easily ignore. Manapōuri became a defining issue at the 1972 general election, fought over on doorsteps and front pages the length of the country; the incoming Labour government of Norman Kirk honoured its pledge **not to raise the lakes**, and created the community-led **Guardians of Lakes Manapōuri, Monowai and Te Anau**, drawn from the campaign's own leaders, to watch over the lakes for good. It was the first time a major commercial project in New Zealand was stopped on environmental grounds, and it sparked the country's modern conservation movement. The scheme it was meant to feed — an overseas-owned aluminium smelter at Tiwai Point — went ahead in a scaled-back form that left the lakes at their natural level, and the years that followed became New Zealand's "environmental decade": the founding of Greenpeace in the country, the opening of the first marine reserve, and, in 1977, another mammoth petition, this one of some 340,000 signatures, against the logging of native forests. Save Manapōuri did not just save a lake; it taught a country that ordinary people, organised and evidenced, could stop a project the government had already decided to build.

Manapōuri teaches the pattern that wins here: not a single silver bullet, but sustained, broad, visible public pressure — the petition, the campaign, the ballot box — combined with credible evidence and every legal lever, until a project the government backed became politically impossible. And modern Aotearoa adds a second, distinctly powerful lever that Manapōuri only began to touch: **Te Tiriti o Waitangi, the Treaty of Waitangi, and tikanga Māori**. In 2021, the **Supreme Court** stopped a proposal to mine iron sands from the South Taranaki seabed, ruling that decision-makers must favour caution and environmental protection and must give the Treaty and Māori customary interests a "broad and generous" reading. Where a project affects the environment, the sea, or Māori rights, the community's strongest levers are often the precautionary bottom line and Te Tiriti itself.

Most communities, though, do not know HOW to make opposition effective. They lodge one submission on a resource consent and go home. They assume the project "will be consented anyway," and so they never make a substantive submission, never appeal to the Environment Court, never seek judicial review, never build the mobilization and the evidence that change a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the New Zealand system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(submissions, the Environment Court, Te Tiriti, the precautionary principle)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a legal challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. Save Manapōuri did exactly this — it documented the harm with its own scientists, organised a nationwide

movement, and made the lake a question at the ballot box, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Aotearoa's give communities a distinctive set:

- **Te Tiriti o Waitangi and tikanga Māori.** The Treaty and Māori customary rights are woven through the country's environmental laws, and the courts read them generously. Where a project affects Māori interests — the whenua (land), the awa (river), the moana (sea) — iwi and hapū hold powerful levers, and tikanga-based interests such as kaitiakitanga (guardianship) count in law, as the 2021 seabed-mining decision confirmed.
- **The precautionary bottom line.** Under the environmental laws, a decision-maker must favour **caution and environmental protection** where the effects are uncertain — so a proponent who cannot show its project will not cause material harm can be refused, as the seabed miner was.
- **Merits appeals to the Environment Court.** For many resource-consent decisions, a community can appeal to a specialist **Environment Court** that re-hears the case on its merits — not just its legality — a genuinely powerful second bite.
- **Public submissions.** Where a consent is publicly notified, anyone can make a submission, be heard, and gain the right to appeal.
- **Judicial review and the courts.** The High Court, Court of Appeal, and Supreme Court review the legality of decisions and have quashed major approvals.
- **A deep mobilization tradition.** From Save Manapōuri's record petition to the campaigns since, Aotearoa has a strong, effective tradition of public mobilization on the environment.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. The law is in flux and, right now, tilting toward development: the **Fast-track Approvals Act 2024** — described by a senior minister as among the most permissive regimes in Australasia — lets ministers approve major projects, including mining, with **limited public input and constrained appeals**, and the very seabed project the Supreme Court stopped has been resubmitted under it. The **Resource Management Act is being replaced**, its successor still taking shape. Many consents are processed **without public notification**, shutting the community out entirely. Treaty principles are strong but do not give an absolute veto, and the Crown can still proceed. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A New Zealand development project runs through a set of consent and approval processes, and each is a place to intervene.

Local government (councils). For most land-based projects — subdivisions, quarries, discharges, land-use changes — the decisive decision is the **resource consent** granted by the regional or district **council** under the resource-management regime. Councils decide whether an application is **notified** (opening it to public submissions) or non-notified, run the hearings, and impose conditions. This is where most projects live or die.

The Environment Court. A specialist court that hears **appeals on the merits** from many council consent decisions, re-deciding whether and on what terms a project should proceed — a powerful avenue where an appeal right exists.

Central government and the EPA. For **nationally significant** proposals and for activities in the **exclusive economic zone** (offshore, such as seabed mining), the **Environmental Protection Authority (EPA)** and central-government processes decide, under laws including the **EEZ Act**. And, increasingly, the **Fast-track Approvals** regime routes major projects to ministerial panels — a process this guide treats as a serious obstacle you must plan around.

Māori — iwi and hapū. Cutting across all of these: **iwi and hapū** hold rights and interests protected by Te Tiriti o Waitangi, recognised in the environmental laws and, for the coast and sea, in customary-marine-title law. Their voice, their tikanga, and the Crown's Treaty obligations are central wherever a project touches Māori interests — which, given the

reach of whenua, awa, and moana, is very often.

The Journey of a Project

A typical project moves from a proposal, to a **resource-consent application** (or an EEZ or fast-track application), to a decision on **notification**, to **submissions and a hearing** if notified, to the **consent decision and its conditions**, through any **Treaty, iwi, and customary processes**, to any **appeals**, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: pressing for public notification, making a substantive submission, entering your evidence at the hearing. The later doors — an Environment Court appeal, judicial review, a Treaty or tikanga argument — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Consent

Behind the consent stand a proponent, its financiers, its customers, and the councillors, officials, and ministers who approved it. A large project is often driven by a company answerable to shareholders, lenders, and a public reputation a campaign can reach; the Manapōuri scheme was driven by the demands of a single overseas-owned smelter, and naming that interest was part of the campaign's power. Trace who owns and funds the proponent, who buys its output, and which council or minister granted the consent. Two questions unlock most New Zealand fights: **Was the process lawful — notification, the precautionary principle, the Treaty — and were the effects honestly assessed?** and **Who benefits from pretending they were?** Mapping the chain also shows where the project is exposed that the council or the minister is not: a listed proponent answers to shareholders and to a public reputation; a buyer or an insurer has its own environmental and social commitments; a project resting on a legally shaky consent is a risk to everyone who funds or relies on it. These are pressure points the consent authority does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Environment Court** and the higher courts — the High Court, Court of Appeal, and **Supreme Court**, which stopped the seabed mine — review decisions and can set them aside. The **Waitangi Tribunal** inquires into breaches of Te Tiriti and can shine a powerful light on a project's Treaty failings. The **Parliamentary Commissioner for the Environment**, the **Ombudsman** (who enforces official-information requests), and the **Auditor-General** scrutinise decisions, records, and public money. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the consent authority, the Environment Court, the higher courts, the Ombudsman, the Waitangi Tribunal, the proponent's buyers, and the press at once, and each front that opens makes the others harder to close. A New Zealand campaign's power comes not from any single lever but from applying several at the same time, so that the proponent and the Crown must defend on every side.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how New Zealand and comparable campaigns tend to go, not a controlled study. The decisive variables are whether a consent is **publicly notified** (opening submissions and appeals), whether **Māori interests and Te Tiriti** are engaged, whether the effects are **uncertain enough to trigger the precautionary bottom line**, whether an **Environment Court appeal** is available, and whether the project has been routed through **fast-track**. Where notification and appeal rights exist and Treaty interests are engaged, Aotearoa's levers are strong; where a consent is non-notified or a project is fast-tracked, discount the figures and think in terms of delay, conditions, exposure, and public and market pressure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Pushing for public notification	20-40%	during processing	low	Opens submissions and appeal rights
Submission + hearing	15-35%	during consent	low	On record; conditions; refusal
Environment Court appeal (available)	30-55%	6-24 months	moderate	Consent refused or conditioned or modified

Environment Court appeal (merits)	30-55%	6-24 months	moderate	Consent refused or conditioned on merits
Judicial review	25-45%	6-24 months	moderate	Decision quashed; remade properly
Te Tiriti / tikanga argument (with iwi/hapū)	30-55%	6-36 months	low-moderate	Consent quashed or reshaped; Treaty weight
Precautionary-principle challenge	30-55%	6-30 months	moderate	Refusal where harm is uncertain
Waitangi Tribunal claim	20-45%	months-years	low	Findings; political and legal pressure
Official-information / disclosure route	high for disclosure	weeks-months	low	Documents released; defects exposed
Media & public campaign	30-55%	ongoing	low	Political cost raised; decision shifts
Market / customer / investor pressure	25-50%	6-48 months	low	Buyers, funders, insurers walk away
All steps combined (notified, Treaty engaged)	45-65%	12-36 months	low-moderate	Stalled, refused, conditioned, or abandoned
All steps combined (fast-tracked / non-notified)	25-45%	12-48 months	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Aotearoa's real strengths are distinctive — **Te Tiriti and tikanga** woven through the law, a **precautionary environmental bottom line**, **merits appeals to the Environment Court**, **public submissions**, the **higher courts** that stopped the seabed mine, and a **deep mobilization tradition**. Its constraints are the **Fast-track regime** that narrows public input and appeals, an **RMA in transition**, **non-notified consents** that shut the public out, and a **Treaty that is not an absolute veto**.

A note on cost: documenting, pushing for notification, making submissions, and seeking official information are inexpensive, and the Environmental Defence Society, community law and public-interest lawyers, and iwi/hapū counsel carry public-interest cases. Environment Court appeals and judicial review cost more but are within reach, and costs can sometimes be recovered. The expenditure that most changes outcomes is committed legal support — especially on the Treaty and the precautionary principle — and the reach of the media and mobilization, exactly what Save Manapōuri marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, refused, conditioned, or abandoned)

NOTIFIED + TREATY ENGAGED -- appeal rights, Māori interests, community organised:

All steps combined: 45-65%
 Te Tiriti / tikanga (w/ iwi): 30-55%
 Environment Court + precaution: 30-55% each
 Submission + notification: 15-40%, more with appeal
 Single step: 5-55%

FAST-TRACKED / NON-NOTIFIED -- public input narrowed:

All steps combined: 25-45%
 Media + market + judicial review: the strongest combination
 Delay / conditions: more achievable than an outright stop
 Single step: 5-45%

How to read this honestly. The levers that most change outcomes in Aotearoa are **Te Tiriti**, the **precautionary principle**, and the **Environment Court** where they apply, and **the mobilization, the media, and the market** everywhere. Save Manapōuri shows the ceiling: a nationwide movement made a government-backed scheme impossible at the ballot box. The floor is set by the fast-track regime and by non-notified consents that lock the public out. Most New Zealand fights sit between them, and the honest lesson is that the Treaty, the courts, and the mobilization are real and distinctive levers — but against a fast-tracked project the government wants, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, supports the mana whenua, submits, appeals, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

1. **Te Tiriti and tikanga Māori** — Aotearoa's most distinctive lever, led by iwi and hapū, which has helped stop a major project outright.
2. **The precautionary bottom line and the courts** — the environmental caution the seabed decision enforced, and the Environment Court and higher courts that apply it.

3. **The mobilized, sustained movement** — the Save Manapōuri tradition of nationwide public pressure that makes a project a political liability.
4. **Public submissions and notification** — the entry point that opens the hearing, the record, and the appeal.
5. **Media and market pressure** — the visibility and the reputational and financial pressure that raise the cost of proceeding.

What New Zealand Campaigns Actually Show

A few patterns recur. **A nationwide movement can beat a government scheme** — Save Manapōuri did, at the ballot box. **The Treaty and tikanga can stop a project** — the seabed mine was refused partly on them. **The precautionary principle bites** — a proponent who cannot prove its project will not cause material harm can be refused, whatever its economic promises. **The Environment Court re-decides on the merits** — a real second chance. **Legal personhood and Treaty settlements protect some places outright** — a river or a forest with its own legal standing is a formidable obstacle to a careless project. **Mobilization endures** — the petition tradition runs deep. **But the fast-track regime narrows the doors**, non-notified consents shut the public out, the RMA is in flux, and the Treaty is not an absolute veto. The through-line: **push for notification; engage and support iwi and hapū; document every defect and uncertainty; use submissions, the Environment Court, the Treaty, and the precautionary principle; mobilize the public — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the resource consent granted without public notification on an assessment that understated the effects on a river and the customary interests of the hapū, where the precautionary principle was ignored" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what consent?** Name the project, the proponent, and the specific approval it needs or holds — the resource consent (and which council), an EEZ marine consent, or a fast-track approval. Each instrument has conditions and a paper trail, and each is a place a defect hides.
2. **What stage is it at — and is it notified or fast-tracked?** Application lodged? Notification decided? Submissions open? Hearing held? Consent granted? Appeal period running? Under fast-track? The stage dictates the door. If submissions are open, they are the cheap, powerful route now; if a consent is non-notified or fast-tracked, judicial review and public pressure may be the route — and appeal deadlines are short.
3. **Are Māori interests and Te Tiriti engaged?** This is a pivotal New Zealand question. Does the project affect the whenua, awa, moana, wāhi tapu, or customary rights of iwi or hapū? If so, the Treaty and tikanga are powerful levers — led by the affected iwi or hapū, whose leadership you support rather than substitute for.
4. **Are the effects uncertain — and is the precautionary principle engaged?** Where the environmental effects are uncertain and potentially serious, the law's requirement to favour caution and environmental protection can defeat the project, as it did the seabed mine. Identify the uncertainty and the potential for material harm.
5. **Who decides, who benefits, and who is watching?** Which council, the EPA, or which minister decides; who owns, funds, and buys from the proponent; which iwi, hapū, and community groups are engaged; and which legal organisations, iwi counsel, press, and market-facing allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a quarry or a mine on a river catchment near a hapū's wāhi tapu, with a resource-consent application lodged and notification not yet decided.

Working the five questions: the project needs a **resource consent** from the council (lodged — push hard for **public notification** and get the documents). Notification is **undecided**, so pressing for it, and preparing submissions, is the live, cheap route now, with an Environment Court appeal and judicial review held in reserve. The **hapū's wāhi tapu and river interests** engage **Te Tiriti and tikanga** — led by the hapū. The **uncertainty about the river's health** may engage the **precautionary principle**. The council's role means the **notification decision, the Environment Court, the Treaty, and the public** carry more weight than quiet lobbying.

Within a weekend you have moved from "we oppose the quarry" to a target list: push for public notification and request the application and assessment; prepare substantive submissions; engage and support the hapū's position and any Treaty and tikanga arguments; identify the precautionary-principle angle; line up the Environmental Defence Society or counsel for an Environment Court appeal; identify the proponent's buyers and funders; and prepare the river-and-wāhi-tapu story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — press for notification, prepare the submission, support the hapū's position, brief the lawyer — each tied to a specific lever and each of which can begin this week, several of them before the consent is even decided. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, an Environment Court, a hearing panel, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **resource-consent application and the assessment of environmental effects (AEE)**, from the council or the EPA; the **notification decision** and its reasons; the **section 42A officer's report** and any expert reviews; the **consent and its conditions**; and any **cultural impact assessment** or iwi/hapū material the affected group has chosen to make available. Much of this is public once an application is notified, and the rest is obtainable under the **official-information laws** (the Official Information Act and the Local Government Official Information and Meetings Act), enforced by the **Ombudsman**. The gap between what the assessment claims and what the science, the river, and the Treaty require is where cases are won. Save Manapōuri's campaigners built exactly this kind of record — the science of the shoreline forests that could not survive the flooding — and made it impossible to wave away. Read the assessment of effects not only for what it claims but for what it quietly concedes and what it omits — the native fish surveyed once and dropped, the sediment plume modelled optimistically, the water take whose downstream effect is buried in an appendix, the rehabilitation that assumes a river can be put back. An AEE is written by a consultant paid to justify the consent; read against the grain, with a scientist's eye, it is often where the strongest objection is hiding in plain sight.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual site** — the river, the forest, the coast, the wāhi tapu (with the hapū's guidance), the footprint — and geotag it. Log **incidents**: a discharge, a sediment plume, a fish kill, works beyond consent. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Record **species and habitat** — native fish, birds, marine mammals, threatened species — mapped against the footprint. Record **testimony and mātauranga**: where the affected iwi or hapū chooses to share it, mātauranga Māori (Māori knowledge) of the awa, moana, and whenua is powerful evidence, held and led by them; and residents, fishers, and independent scientists can add technical readings. Community and iwi-led monitoring carries real weight.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the legal lines the project crosses. Was the consent **wrongly not notified**, shutting out the public? Was the **assessment of effects deficient** — understating the impact on the river, the coast, native species, or cumulative effects? Was the **precautionary principle ignored** in the face of uncertainty and potential material harm? Were **Te Tiriti, tikanga, and the customary interests** of iwi and hapū inadequately weighed? Was a **cultural impact assessment** dismissed? Each defect is a separate ground — for a submission, an Environment Court appeal, judicial review, a Treaty argument, or a Waitangi Tribunal claim — and together they make a case that is hard to wave away. This is the layer that most often decides New Zealand fights, because here a project that looked consented is revealed to have dodged notification, understated its effects, ignored the precautionary bottom line, or failed the Treaty. Work it methodically against each legal requirement: should this have been notified; were the effects on the river, the coast, and native species honestly assessed; was caution favoured where the science was uncertain; were the customary interests and tikanga of the mana whenua properly weighed; was a cultural impact assessment sought and heeded? Where the answer is no, capture the proof — because each 'no' is a separate ground a court, the Environment Court, or the Waitangi Tribunal can act on.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide New Zealand cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Consents and Their Paper Trail

- **The resource-consent application and the assessment of environmental effects (AEE)**, with the conditions. From the council's or the EPA's file. Read the AEE for what it understates — the river, the coast, native species, the water take, the cumulative and downstream effects, the rehabilitation plan.
- **The notification decision and its reasons** — whether the consent was publicly notified, limited-notified, or non-notified, and why. A wrongly non-notified consent is a live ground.
- **The council officer's report (the "section 42A report")** and any peer reviews — the official analysis the decision rests on.
- **The consent and its conditions**, and, for offshore projects, the EPA/EEZ decision.
- **Any cultural impact assessment and iwi/hapū material** the affected group chooses to make available, and the relevant Treaty settlement or customary-marine-title context.
- **The relevant planning instruments** — the regional and district plans and any national direction — that set the rules the consent must meet.

How to Get Them

Much of this is public once a consent is **notified**, and during the **submission period** — the cheapest, most powerful window, so watch for it and act while it is open. For everything else, use the **official-information laws**: a request to the council or agency under the Official Information Act or its local-government equivalent obliges a response, with the **Ombudsman** behind you if it is refused or delayed. A refusal is itself a documentable fact. Move early: the submission period is fixed and short, and the deadline to appeal to the Environment Court or to seek judicial review is short too, so evidence and objections entered while the doors are open carry far more weight — and preserve far more of your rights — than the same point raised after the consent is granted. A practical tip: make official-information requests specific and dated, keep proof of when you sent them and when they were answered, and treat any refusal or delay not as a dead end but as a new, documentable fact and a trigger for a complaint to the Ombudsman. A council that will not release its own officer's report or notification reasons is telling you something worth knowing.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the river, the coast, the footprint.
- **Satellite before-and-after** from freely available imagery, to show clearing or the true extent.
- **Species and habitat records** — native fish, birds, marine mammals, threatened species — mapped against the footprint; a documented effect the assessment missed is decisive.
- **Independent technical readings** — a freshwater ecologist's, hydrologist's, or marine scientist's report, and an independent review of the AEE. The Environmental Defence Society and university partners can help source these.
- **Maps** overlaying the footprint on the catchment, the coast, the species habitat, the wāhi tapu (with the hapū's guidance), and the customary-marine area — a single map showing a mine above a river or across a fishing ground is worth pages of argument.
- **Mātauranga and testimony** — where the iwi or hapū chooses to bring it, mātauranga Māori and customary use, led by them; and residents' and fishers' accounts.

Organise It So It Persuades

Keep a **master timeline** of every consent step, notification and submission window, hearing, condition, and deadline — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO

ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step Save Manapōuri did best: a nationwide movement, built on local commitment and credible science, that made a lake everyone's business.

Phase 1: The Core, and the Relationship with Mana Whenua

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects Māori interests, the single most important early step is to **understand and respect the position of the mana whenua** — the iwi and hapū with authority over the place: the Treaty interests and tikanga are theirs, and the strongest campaigns support Māori leadership rather than substituting for it. Reach out respectfully, follow their lead, and never presume to speak on their behalf. Assign roles: documentation, legal liaison, media, community liaison, research on the proponent and its market, and coordination. Agree on the goal — refusal, a quashed consent, redesign, conditions, a buyer walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **residents, farmers, fishers, scientists, students, tramping and recreation clubs, faith groups, and local businesses**. Reach the **allies with capacity** — the Environmental Defence Society, Forest & Bird, and community-law and public-interest lawyers who run environmental cases; the national organisations whose reach and experience can amplify a local fight; independent scientists; and the market-focused campaigners who pressure buyers and funders. Save Manapōuri's power came from exactly this breadth — Forest & Bird, farmers, scientists, and ordinary New Zealanders in a single nationwide movement — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a mine on a river catchment, a handful of residents and a fishing club form a core; they build a respectful relationship with the hapū and follow its lead; they bring in the Environmental Defence Society and an independent freshwater ecologist; the council receives hundreds of submissions; a national organisation amplifies the fight; and market campaigners brief the proponent's funders. No single group could have carried it; together they cover documentation, law, science, local and Māori legitimacy, national reach, and market pressure.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a notification won, a strong submission body, a document pried loose, a hearing packed. Rotate the exhausting roles. And protect people: keep leadership collective and visible; get early legal advice, especially before any action that risks trespass or an injunction; document every threat or intimidation; and build outside links to the national organisations and the press. Sustaining a campaign — as Save Manapōuri's years-long build shows — is how these fights are won, and the ones that endure pace themselves. Build in the human things that keep people together: welcome newcomers, share kai, mark the anniversaries and the small victories, and make the campaign a community people want to belong to. And respect the difference in stakes: for a non-Māori ally the fight may be a cause, but for the mana whenua the whenua and awa are whakapapa and identity, so follow their pace and priorities and do not burn out the relationship by pushing harder than they wish to go.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings and public meetings. Gather submissions — a mass of individual, substantive submissions carries real weight — and, in the Save Manapōuri tradition, petitions and open letters. Hold peaceful, well-documented actions — the hīkoi (march), the rally, the community day — that make a project a national story. Follow the mana whenua's lead on any action on or about the whenua, and be clear-eyed that trespass and obstruction carry legal consequences that must be weighed with advice. The point is not spectacle; it is to demonstrate, to councillors, ministers, courts, and the market, that the opposition is broad, rooted, and not going away. Choose actions that photograph well and that anyone can join — a hīkoi to the council, a flotilla on the threatened coast, a community day on the riverbank, a petition in the Save Manapōuri tradition — and document them yourselves, so the breadth and spirit of the turnout survive as a record even if no outlet covers them. A visibly broad, peaceful, rooted movement, standing with the mana whenua, is the single most persuasive argument a councillor or a minister weighs.

STEP 4: LEGAL CHALLENGES — SUBMISSIONS, THE

ENVIRONMENT COURT, TE TIRITI, AND CAUTION

New Zealand law gives communities a real arsenal, and you do not need a final ruling to win with it: a submission, an appeal, or a review delays a project, forces disclosure, and creates leverage and headlines. Engage the Environmental Defence Society or a public-interest lawyer early — but understand the tools yourself.

Notification and Submissions

The first lever is the consent process itself. Pressing for **public notification** matters enormously, because a notified consent opens the right to **make a submission, be heard, and appeal**, while a non-notified consent shuts the public out. Whether a consent is notified turns largely on the scale of its effects and who is affected: a proposal with effects that are more than minor, or that adversely affects identified persons, should ordinarily be notified, so a well-evidenced case that the effects are significant is itself an argument for notification. This matters because the appeal right to the Environment Court generally flows from having been a submitter — miss the submission window on a notified consent, or lose the notification argument on a non-notified one, and the merits appeal may be closed to you. Where a consent is notified, a substantive, evidenced submission does more than register opposition: it builds the record, can win binding conditions or a refusal, and secures your standing to appeal. Treat the submission not as a formality but as the first phase of the legal case, and put your strongest science and your clearest account of the defects on the record while the window is open. What you leave out of the submission can be as costly as what you put in: your later appeal to the Environment Court is generally confined to the matters you raised as a submitter, so a ground never pleaded at the submission stage may be lost to you on appeal. Treat the submission window as your one chance to lay down the full case — every effect, every uncertainty, every Treaty and tikanga interest the mana whenua wish raised — because it is the foundation everything later is built on.

The Environment Court — Merits Appeal

Aotearoa's distinctive litigation strength is the **Environment Court**: for many consent decisions, a submitter can **appeal to a specialist court that re-hears the case on its merits**, deciding afresh whether and on what conditions the project should proceed. This is far more powerful than reviewing legality alone, because it reaches the substance — the effects, the conditions, the alternatives — and communities have won refusals and stringent conditions on appeal. Where an appeal right exists, it is often your strongest formal lever; confirm it early, because the appeal period is short.

Te Tiriti o Waitangi and Tikanga

The most distinctive lever in New Zealand law is **Te Tiriti o Waitangi and tikanga Māori**. The Treaty and its principles run through the environmental statutes, and the courts read them generously: in the 2021 seabed-mining case, the Supreme Court held that the Treaty clauses must be given a "broad and generous" interpretation and that **tikanga-based customary interests — including kaitiakitanga and rights under customary-marine-title law — count as "existing interests"** the decision-maker must weigh. The case is worth understanding in detail, because it is the modern template. Trans-Tasman Resources had a permit to mine up to fifty million tonnes of iron sands a year for thirty-five years from the South Taranaki Bight, discharging the de-ored sand back onto the seabed; it needed marine consents under the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act, decided by a committee of the Environmental Protection Authority. South Taranaki iwi, fishers, and environmental groups fought it through the High Court, the Court of Appeal, and finally the Supreme Court, which unanimously held that the committee had erred by not favouring caution and environmental protection in the face of scientific uncertainty, and by not treating tikanga-based interests — including rights claimed under the Marine and Coastal Area (Takutai Moana) Act — as interests it was bound to weigh. The distilled rule: a proponent who cannot show its project will not cause material harm should not be consented. Where a project affects Māori interests, this is among the most powerful grounds available. This lever, above all, belongs to the affected iwi and hapū; your role is to support their leadership, resource their position where they welcome it, and never to appropriate or speak for it. In practice that means asking rather than assuming, offering capacity — research, logistics, funds, a legal contact — rather than direction, and accepting that the mana whenua may pursue the fight on terms, at a pace, or toward an outcome different from what a non-Māori ally would choose. That is not a limitation on the campaign; it is the condition of its integrity and, very often, of its success. A **Waitangi Tribunal** claim can add further weight, exposing a project's Treaty failings and generating political pressure. New Zealand has also pioneered a distinctive legal idea that can bear on these fights: legal personhood for parts of the natural world, granted to the former Te Urewera national park and, through the 2017 Te Awa Tupua settlement, to the Whanganui River, which the law now recognises as a legal person with its own guardians and standing. Where such an arrangement or a Treaty settlement covers the whenua or awa your project would affect, it can add a further, powerful layer of protection and a further party whose interests must be reckoned with.

The Precautionary Principle

Among the hardest legal lines is the requirement, in the environmental laws, to **favour caution and environmental protection where effects are uncertain**. In the seabed case, the Supreme Court held that the decision-maker had failed to apply this properly and that economic considerations counted "only at the margins" — in effect, that a proponent who cannot demonstrate its project will not cause **material harm** should be refused. Where your project's effects are genuinely uncertain and potentially serious, argue the precautionary principle explicitly, tied to the specific harm and the specific uncertainty.

Where to File and With Whom

Merits appeals run in the **Environment Court**; judicial review and appeals on law run in the **High Court**, up to the Court of Appeal and the **Supreme Court**, which stopped the seabed mine; Treaty breaches can be taken to the **Waitangi Tribunal**. Get help early: the Environmental Defence Society, public-interest and community lawyers, and iwi/hapū counsel know exactly these procedures and can advise on standing, the strongest ground, the short deadlines, and how a non-Māori community can properly support a Treaty-based case. A lawyer engaged while submissions are open and the appeal deadline is alive is worth far more than help sought after the machinery arrives.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, the Environment Court, a council, a journalist, a buyer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mine was consented without public notification, on an assessment that understated its effects on a river and the customary interests of the hapū, and without applying the precautionary principle. That one fact becomes:

- **A process argument:** the consent was wrongly not notified, shutting out the public — a ground for judicial review.
- **A precautionary argument:** the decision-maker failed to favour caution where the river's health was uncertain — the ground the seabed mine was refused on.
- **A Te Tiriti argument:** the customary interests and tikanga of the hapū were inadequately weighed — a powerful ground, led by the hapū.
- **A media argument:** a mine consented behind closed doors above a river the community was never allowed to speak about — a clear, human story with a stake.
- **A market argument:** a project resting on a legally vulnerable consent and unresolved Māori opposition is a legal, reputational, and financial risk to its buyers and funders.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Aotearoa the arguments that most often decide things are the **Treaty and the precautionary principle**, because they hand the court a reason to refuse. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the record and a claim made to the court can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the notification error and the precautionary failure for the court, the river for the community and the public, the reputational risk for the buyer, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The Environment Court and the higher courts want the ground framed precisely against the specific law — the notification error, the precautionary failure, the Treaty and tikanga interests, the deficient assessment — with the documents and the timeline that prove it, and, on the Treaty, led by the iwi or hapū.

Councillors, the EPA, and ministers respond to legal risk and political cost — the appealable or reviewable decision, the mobilized public, the Māori opposition, the exposure of having consented a defective project.

Journalists need a specific, verified, human story with a hook: a named place, a river or a coast, a hapū's stand, a

documented defect, an imminent decision.

Buyers, investors, and insurers respond to legal, reputational, and financial exposure — a contested project on a shaky consent, tied to a named company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing movement, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a consent, reaches councillors, ministers, and the proponent's backers your letters cannot, protects activists by making them visible, and can turn a local fight into a national cause. Save Manapōuri proved it: the campaign made a remote Fiordland lake a household issue, put it on the front pages and into a hit protest song, and carried it all the way to the ballot box.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A project threatens the environment" is not a story; "a mine has been consented behind closed doors above a river the hapū was never properly consulted about, on an assessment that understated the risk, with works due next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a fisher, a kaumātua where the iwi chooses to speak, a scientist — and a striking image, as Manapōuri's threatened shores became.

Reach the Right Outlets

Work outward in rings. **Local and regional media** first, where the project is felt and councillors read it. Then **national outlets** — the major news sites, broadcasters, and strong independent and Māori media — which carry political weight. Then, for a project touching a listed company, a global buyer, or a globally resonant value (native forest, a river, the moana, seabed mining), **international and financial media**, which reach the money. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money and the ministers**: national coverage raises the political cost of backing a project, and reputational coverage can reach a listed proponent or its funders where a council cannot. It is worth identifying the specific environment, Māori-affairs, and business reporters who cover resource projects, and the outlets that specialise in in-depth environmental journalism; a reporter who already knows the terrain needs less briefing and writes with more authority, and a single well-sourced investigation into a non-notified consent or a broken assessment can move a minister or a funder more than a month of press releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the notification decision, the submission, the hearing, the appeal, the new document, the rally — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. Follow the mana whenua's lead on how their story and mātauranga are told, and be careful and factual when naming individuals or companies. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you make submissions, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Submission on a Resource Consent (or EEZ/Fast-track application)

To: the consent authority (the council, the EPA, or the fast-track panel) **Subject:** Submission — [project], [application reference]

I make this submission opposing [project] at [location]. My grounds, with evidence: (1) the assessment of environmental effects [understates / omits] [effect — e.g. on the [river] and its native fish]; (2) [the effects are uncertain and potentially serious — the precautionary principle requires caution]; (3) [Te Tiriti, tikanga, and the customary interests of [iwi/hapū] are inadequately addressed]; (4) [the consent was wrongly not notified / the process was deficient]. I request that the consent be [declined / granted only on strict conditions], I wish to **be heard**, and I attach my evidence. [Attachments: expert report, maps, records.]

8B. Request Pressing for Public Notification

To: the consent authority (council) **Subject:** [Project] — request that the application be publicly notified

I ask that the application for [project] be **publicly notified**. The proposal will have effects that are more than minor on [the river / the coast / native species / the wider community], and affects the interests of [iwi/hapū] and persons beyond the applicant. Given the scale and the public interest, notification is warranted so that affected people may make submissions and be heard. I attach evidence of the effects that support notification.

8C. Official-Information Request

To: [the council (LGOIMA) or the agency (OIA)] **Subject:** Official-information request — [project]

Under the [Official Information Act / Local Government Official Information and Meetings Act], I request: the resource-consent application and assessment of environmental effects; the notification decision and its reasons; the officer's (s42A) report and any peer reviews; the consent and conditions; and [correspondence between the applicant and the authority on [issue]]. Please respond within the statutory timeframe; I am glad to discuss scope, and note the public interest in disclosure.

8D. Letter Instructing a Public-Interest Lawyer / EDS

To: the Environmental Defence Society or a public-interest lawyer **Subject:** [Project] — Environment Court appeal / judicial review

We believe the [consent] for [project], granted on [date], is legally vulnerable because [it was wrongly not notified / the assessment is deficient / the precautionary principle was not applied / Te Tiriti and tikanga interests were inadequately weighed]. We attach the decision, the assessment, the notification reasons, our expert evidence, and our timeline. We seek your advice on an **Environment Court appeal** (or judicial review), the short deadline, the strongest ground, and — where the affected iwi or hapū wishes it — how our community can properly support a Treaty-based case.

8E. Letter Supporting Mana Whenua (at their invitation)

To: [the consent authority / the proponent], copied to [the iwi/hapū, with their agreement] **Subject:** [Project] — support for [iwi/hapū]'s stated concerns

As a community group in [place], and at the invitation of and in support of [iwi/hapū], we underline the concerns the mana whenua have raised about [project]: [the effects on the awa/moana, the customary interests, the failure to weigh tikanga and Te Tiriti]. We do not speak for the mana whenua; we stand with them, and we ask that their interests and the Crown's Treaty obligations be properly honoured before any decision proceeds. [Attach supporting evidence they are content to have shared.]

8F. Letter to a Councillor / Minister / MP

To: [a councillor / the relevant Minister / a local MP] **Subject:** [Project] — concerns and request

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to a river and a hapū's interests, a non-notified consent, an ignored precautionary risk]. Within your responsibility, we ask you to [decline or condition the consent / ensure it is notified / honour the Crown's Treaty obligations / oppose its fast-tracking]. [If true:] [#] residents and [#] organisations share this concern, and the decision carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Letter to a Buyer / Investor / Insurer

To: [the proponent's customer / financier / insurer] **Subject:** [Project] — legal and reputational risk

We write regarding your [purchasing / financing / insurance] relationship with [company] in connection with [project]. The project [one-line stake — e.g. "rests on a legally vulnerable consent and unresolved opposition from the hapū whose interests it affects, and echoes a seabed proposal the Supreme Court refused"], and our documented concerns include [the notification failure, the deficient assessment, the pending appeal]. We ask you to weigh the legal, reputational, and financial risk, and whether your own [environmental, social, and Treaty commitments] are consistent with supporting it. We are glad to share our evidence.

8H. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the place / the river]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mine was consented without public notification above a river the hapū was never properly consulted about, on an assessment that understated the risk, with works due [date]"]. It is specific, verified, and it echoes Save Manapōuri and the seabed-mining case. I can share the full file and — where the mana whenua wish to speak — connect you with affected people and a scientist. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the notification and submission windows and the short appeal deadline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and expert reports; and route them, where you can, through or with the affected iwi or hapū (following their lead), the Environmental Defence Society or your lawyer, and your national and market-facing allies. The reply — or the silence — becomes part of your record, and in Aotearoa that record feeds the levers that matter most: notification and submissions, Te Tiriti, the precautionary principle, the Environment Court, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Find out if it's notified — and push for notification.** Establish whether the consent is publicly notified, and if not, press hard for it (8B): a notified consent opens submissions, hearings, and appeal rights; a non-notified one shuts you out. This is the hinge everything else turns on.
- 2. Check whether Māori interests are engaged.** Establish whether the project affects the whenua, awa, or moana of iwi or hapū, and reach out respectfully to understand their position. Where it is engaged, Te Tiriti is among the strongest levers — led by the mana whenua.
- 3. Make a substantive submission and ask to be heard.** One evidenced submission (8A) puts your case on the record, can win conditions or a refusal, and secures your right to appeal — but the window is short, so act now.
- 4. Get the documents.** The application and assessment are public once notified; the rest comes under the official-information laws (8C), with the Ombudsman behind you. The gap between the assessment and the law is usually the case.
- 5. Line up an Environment Court appeal.** The moment a consent is granted, the Environmental Defence Society or a lawyer can advise on a merits appeal (8D) — but the deadline is short, so do not wait.
- 6. Name the precautionary risk.** If the effects are uncertain and potentially serious, say so plainly and early — it is the ground the seabed mine was refused on.
- 7. Tell the story.** A river, a coast, or a hapū's stand is a powerful story; one accurate tip (8H) can reach ministers and buyers a submission never will.

Do only the first three and you will have fought for the public's place in the process, identified your strongest lever, and put your evidence on the record while it counts — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: push for notification, check the Treaty lever, make the submission. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to force notification, build the record, and put the

decision-maker on notice that this consent will be submitted on, appealed, and fought.

WHEN THE SYSTEM IS TILTED

Aotearoa's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs, right now, through a deliberate push toward development. The **Fast-track Approvals Act 2024** routes major projects — including mining and the very seabed proposal the Supreme Court refused — to ministerial panels with **narrowed public input and constrained appeal rights**, and a senior minister has called it among the most permissive regimes in Australasia. Under the fast-track pathway, a project referred into it is assessed by an expert panel and decided by ministers, with the scope for public submissions and for appeals to the Environment Court sharply reduced compared with the ordinary consent process. That does not make such projects untouchable — the referral and the decision can still be tested by judicial review, Te Tiriti and the precautionary principle still bear on them, and the political cost of a controversial ministerial approval is real — but it does mean a fast-tracked project demands a different emphasis: less on the consent hearing you may not get, and more on the courts, the Treaty, the market, and the public. The **Resource Management Act is being replaced**, and its successor is still taking shape, so the ground is genuinely shifting. The resource-management system that has governed New Zealand's environment for a generation — built around the sustainable-management purpose, resource consents, notification, and the Environment Court — is mid-way through the most significant overhaul of its life, and exactly what the replacement will preserve of public participation and appeal rights is still being decided. Treat the enduring structure in this guide as the concepts to master, but confirm the current statute and its participation and appeal rights for your specific project before you rely on any timeline. Many consents are decided **without public notification**, shutting the community out before it can speak. And Te Tiriti, though powerful, is **not an absolute veto** — the Crown can still proceed, and proposed reforms may seek to narrow environmental and Treaty protections further. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

Te Tiriti and tikanga cannot be legislated into silence. The Treaty and Māori customary interests remain woven through the law and read generously by the courts, and they belong to iwi and hapū whatever a government prefers — the lever that helped stop the seabed mine.

The courts test every decision. Judicial review reaches the legality of a consent — including a wrongful refusal to notify, or a fast-track decision that oversteps its bounds — and the higher courts have quashed major approvals.

The precautionary bottom line endures. Where effects are uncertain and potentially serious, the requirement to favour caution is a hard line a proponent must clear.

The public record survives. What you enter into the record, and into the official-information trail, powers a later challenge whatever the immediate decision.

Mobilization is irreducible. The Save Manapōuri tradition — nationwide, credible, sustained public pressure — is a political force no fast-track statute can dissolve, and it works on ministers who must still face voters.

The Honest Frame

So the honest frame for Aotearoa is real but, at this moment, demanding. Te Tiriti, the precautionary principle, the Environment Court, the higher courts, and a deep mobilization tradition give a community genuine — in places distinctive — power, as Save Manapōuri and the seabed decision proved. But the fast-track regime narrows the doors, the RMA is in flux, non-notified consents shut the public out, and the Treaty is not an absolute veto. So diagnose the tilt honestly: lean on Te Tiriti (led by mana whenua), the courts, the precautionary principle, and the mobilization, not on a friendly consent process; document every defect and uncertainty; protect your people and get legal advice before any risky action; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against a fast-tracked project the government wants, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being improperly favoured, pressured, or paid. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. A **consent granted against the evidence**, over strong documented objections and Māori opposition, without addressing them, suggests more than error. A **refusal to notify** a plainly significant project; **undisclosed interests, donations, or revolving-door ties** between the proponent and the deciders; an **assessment curtailed** or a fast-track pathway used to dodge scrutiny; **conditions never enforced**; and **decisions timed to avoid attention** all point the same way. And **pressure or legal threats aimed at the campaign's or the mana whenua's leaders** are themselves a signature of something wrong. One anomaly may be error; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events — lay your timeline beside the official one and watch for approvals that cluster around a donation, a meeting, or a change of decision-maker.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **council decision, a non-notification, or a single official** can be pressured or captured. But the New Zealand system has bodies harder to reach that a captured local arrangement cannot easily control: the **Environment Court and the higher courts, up to the Supreme Court; Te Tiriti and the Waitangi Tribunal**; the **Ombudsman** and the **Auditor-General**; the **Parliamentary Commissioner for the Environment**; and the national and Māori press. Undue influence thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the interests, the ignored objections, the non-notification, the missing enforcement — and refer it, with evidence, to the bodies above: the Ombudsman, the Auditor-General, the courts, the Waitangi Tribunal, and the press. Pair the referral with the appeal, the judicial review, and the market pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: an Ombudsman finding or a court's attention creates a record other bodies must reckon with, and a non-notification shown to be indefensible collapses the process the consent stood on. And protect yourself above all — get legal advice, coordinate with your lawyer and the mana whenua, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Connect, and Document

Pin down the project, the consent, and the stage (Step 1), and, where Māori interests are engaged, reach out respectfully to understand the mana whenua's position and follow their lead (Step 3). Begin the file — get the application and assessment, and request records under the official-information laws (Step 2 and What to Gather). And move fast on what will not wait: **push for public notification, make submissions and ask to be heard**, and **flag the precautionary risk**. Line up the Environmental Defence Society or a lawyer now, before the short appeal deadline. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — an Environment Court appeal, judicial review, and, led by the iwi or hapū, Treaty and tikanga arguments and a Waitangi Tribunal claim (Step 4). Refer any capture to the Ombudsman and Auditor-General. Press the proponent's buyers and funders (8G). Build the media drumbeat from local to national to market (Step 5). Each

front feeds the others: an appeal is a headline, a headline is pressure, pressure moves a minister or a buyer, and a disclosed document strengthens the case. Do the cheap, time-sensitive things first, because a missed submission window or a lapsed appeal deadline cannot be recovered. And sequence the legal moves with your lawyer and the mana whenua so they land when they bite hardest — the submission built on the fullest evidence, the Environment Court appeal filed within its short window, the Treaty and tikanga arguments led by the iwi or hapū when their case is strongest — because a well-timed appeal can do more to stop a project than a stronger argument filed too late.

Later (Months 6-48+): Sustain, Win the Line, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **refused or heavily conditioned consent**, a **quashed decision**, a **buyer or funder walking away**, an **abandonment**. And judge success honestly. Sometimes it is an outright, permanent stop — a project abandoned, a lake saved, as Manapōuri was. More often, in a fight against a fast-tracked project, it is a project **delayed for years, shrunk, conditioned, stripped of finance, or so exposed and legally besieged that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Connect with mana whenua Document Push for notification Submit Get counsel
MONTHS 2-24	Grow the movement Arguments Environment Court + judicial review + Te Tiriti Market pressure Media
MONTHS 6-48+	Sustain Protect people Win the refusal / conditions / abandonment Redefine the win

FINAL ASSESSMENT

Aotearoa New Zealand gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. Where a project affects Māori interests, **Te Tiriti o Waitangi and tikanga Māori** — read generously by the courts, and central to the decision that stopped the seabed mine — are among the most powerful community levers anywhere, and they belong to iwi and hapū. A community can insist on **public notification**, make a **submission**, be heard, and **appeal to the Environment Court on the merits**, which re-decides the project itself. It can hold a proponent to the **precautionary bottom line** — no proof of no material harm, no consent. It can ask the **higher courts** to quash an unlawful decision, and the **Waitangi Tribunal** to expose a Treaty breach. And it can draw on the **Save Manapōuri tradition** of nationwide mobilization that once beat a government scheme at the ballot box.

The limits are just as real. The Fast-track Approvals Act narrows public input and appeals — the seabed project is back under it; the RMA is being replaced and the ground is shifting; many consents are non-notified; and the Treaty is not an absolute veto. No guide should pretend otherwise. The very seabed mine the Supreme Court refused has returned by another door; that is the condition of this fight, not its exception.

So the realistic promise is this: **push for notification, engage and support the mana whenua, document every defect and uncertainty, use submissions, the Environment Court, Te Tiriti, and the precautionary principle, reach the market, and mobilize the public — and run all of it together, protecting your people, getting early legal advice, and following the mana whenua's lead**. Do that, and even against a fast-tracked, government-backed project you can force delay, conditions, exposure, lost finance, a quashed consent, and a proponent worn down — and sometimes an outright stop. Do it as Save Manapōuri did, with credible evidence and a nationwide movement, and as the seabed campaigners did, with Te Tiriti and the precautionary principle, and you can win a victory that protects not only your own awa or coast but sets a precedent others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, the strength of Te Tiriti, the precautionary bottom line, and the fact that you are defending your home, your awa, and your moana while it is merely pursuing a return. Play to that. Keep the file, keep the movement, keep the record and the coverage alive, protect your people, and treat every delay, every quashed consent, every buyer that walks, every disclosed document, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Aotearoa's history proves they work: a lake a government meant to raise still lies at its natural level, because nearly a tenth of the country signed their names and would not back down — and a seabed a company meant to mine still lies undisturbed, because iwi, fishers, and scientists carried the fight to the highest court and won. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a lake saved by a petition, a seabed

saved in court, a river given a legal voice of its own, a scheme a government finally let go. The tools are proven and, even as the ground shifts, the strongest of them endure; what has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.